

20STCV31478 20STCV31478

County: los-angeles

Division: Civil Law and Motion

Department: 400

Hearing date: 2026-06-24

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Case Number: 20STCV31478 Hearing Date: June 24, 2026 Dept: 400

MOTION TO COMPEL DISCOVERY RESPONSES (NOT FURTHER) AND REQUEST FOR

MONETARY SANCTIONS AGAINST DEBTOR EVA CEPEIDA AND HER COUNSEL

Relief Requested:

The Court

enter an order compelling defendant Eva Cepeida to respond within 10 days to

Plaintiff's first set of form interrogatories served on August 11, 2025.

Plaintiff also requests the imposition of monetary sanctions against defendant

Eva Cepeida and her counsel of record, Jacob Mojarro, in the amount of \$1,675.00.

Analysis

Plaintiff Jose

Rivera ("Plaintiff") moves to compel Defendant's responses to set one of

Plaintiff's form interrogatories (post-judgment) and requests the imposition of

monetary sanctions in the sum of \$1,675.00 against Defendant and her counsel of

record.

A.

Legal Standard

“The judgment creditor may propound

written interrogatories to the judgment debtor . . . requesting information to

aid in enforcement of the money judgment.” (Code Civ. Proc., § 708.020, subd.

(a).) “Interrogatories served pursuant to this section may be enforced, to the

extent practicable, in the same manner as interrogatories in a civil action.”

(Code Civ. Proc., § 708.020, subd. (c).)

A party must respond to interrogatories within 30 days after

service. (Code Civ. Proc., § 2030.260, subd. (a).) If a party to whom

interrogatories are directed does not provide timely responses, the

requesting party may move for an order compelling responses to the discovery.

(Code Civ. Proc., § 2030.290, subd. (b).) “The party to whom the

interrogatories are directed waives any right to exercise the option to produce

writings . . . as well as any objection to the interrogatories, including

one based on privilege or on the protection for work product”

(Code Civ. Proc., § 2030.290, subd. (a).) There is no time limit for a

motion to compel responses to interrogatories other than the cut-off on hearing

discovery motions 15 days before trial. (Code Civ. Proc., §§ 2024.020,

subd. (a), 2030.290.)

Code Civ. Proc. § 2023.010(d)

provides that a misuse of the discovery process is failing to

respond or to submit to an authorized method of discovery. Code

Civ. Proc., § 2023.010(h) states that a misuse of the discovery process includes

making or opposing, unsuccessfully and without substantial justification,

a motion to compel or limit discovery. A court may impose a monetary

sanction against a party engaging in the misuse of the discovery process or any

attorney advising such conduct under Code Civ. Proc. § 2023.030(a).⁴A

court has discretion to fix the amount of reasonable monetary sanctions.⁵(Cornerstone

Realty Advisors, LLC v. Summit Healthcare Reit, Inc. (2020) 56 Cal.App.5th

771, 791.)⁶

B.

Defendant Has Provided Responses to the Discovery at

Issue

In support of the motion, Chad

Biggins ("Biggins") provides a declaration. Attorney

Biggins declares, inter alia, that "[t]he discovery

was served on 8-11-25 by mail as well as email" (Biggins Decl., ¶ 2;

Exh. 1.) "To date, Plaintiff has not received the responses." (Id., ¶ 3;

Exh. 2.) Counsel has an hourly rate of \$800 per hour which counsel states "has

been awarded by the Court in numerous cases.” (Id., ¶ 4.) One (1) hour

was spent preparing the motion. (Id.) One (1) hour is anticipated for

the reply and appearing at the hearing on the motion. (Id.) Counsel

attests that a filing fee of \$75.00 was incurred. (Id.) Plaintiff

requests monetary sanctions in the sum of \$1,675.00. (Id.)

In

opposition, Attorney Jacob Mojarro (“Mojarro”) declares, inter alia,

that responses to the discovery at issue were served on May 29, 2026. (Mojarro

Decl., ¶ 3; Exh. 1.) Supplemental responses were served on June 9 and June 11,

2026 to certain form interrogatories. (Id., ¶¶ 4-5; Exhs. 2-3.) Counsel

attests that the instant motion “is not for the purposes of any particular

discovery need but rather to incur costs in retribution of the accusation of

unethical conduct against Mr. Biggins.” (Id., ¶ 12.) “The Form

Interrogatories served by Plaintiff’s were all contained within previous from

interrogatories propounded by Plaintiffs and responded to by Cepeida on May 3,

2021. The only additional Form Interrogatories were 6.2 and 6.3 which related

to personal injury and not applicable to these post-judgment proceedings.” (Id.,

¶ 6.)

The Court DENIES

the request of Plaintiff to compel the responses of Defendant to the

post-judgment form interrogatories at issue. Although served late, Defendant has now provided responses to the discovery at issue prior to the hearing. Due to the lack of a written reply brief, the Court assumes that Plaintiff does not take issue with the sufficiency of the responses.

The Court,

however, finds that the imposition of monetary sanctions is proper. Defendant has not provided a reason for the untimely discovery responses.

Therefore, the Court GRANTS IN PART

the request for monetary sanctions in the reasonable amount of \$460.00

(representing one (1) hour of work on the motion at the rate of \$400.00 per

hour plus the filing fee of \$60.00). As stated in this Court's October 28, 2025

order as to Plaintiff's motion to compel discovery responses: "Plaintiff's

counsel alleges an hourly rate of \$800 an hour with no justification other than

that unspecified courts have recognized the rate before . . . [t]he Court

credits a more reasonable rate of \$400." (10/28/25 Minute Order at p. 2.)

Monetary

sanctions in the sum of \$460.00 are to be paid by Defendant and her counsel of

record, Jacob Mojarro, jointly and severally to Plaintiff within 30 days of the

date of this order.

Conclusion:

The Court GRANTS IN PART

Plaintiff's motion to compel responses to set one of Plaintiff's form

interrogatories and request for monetary sanctions.

The Court

DENIES the request of Plaintiff to compel Defendant's responses to set one of

Plaintiff's form interrogatories.

The Court

GRANTS IN PART the request for monetary sanctions and award Plaintiff

reasonable monetary sanctions in the sum of \$460.00. The Court orders that

Defendant and her counsel of record pay monetary sanctions in the sum of

\$460.00, jointly and severally, to Plaintiff within 30 days of the date of this

order.

MOTION TO DISQUALIFY CHAD BIGGINS AS COUNSEL FOR PLAINTIFFS

Relief Requested:

The Court enter

an order disqualifying Chad Biggins and any associated firm from further

appearing as counsel for Plaintiffs in this action, including all post-judgment

enforcement, levy, renewal, and collection proceedings.

Summary of Action:

This action arises from an alleged

nuisance at a property located at 1203 E. Cesar E. Chavez Ave., Los Angeles, CA 90033.

On August 17, 2020, plaintiff

Progress Place filed a complaint against defendants Eva Cepeida ("Defendant")

and DOES 1-100, alleging causes of action for (1) Trespass and (2) Nuisance.

On December 29, 2020, plaintiffs

Progress Place, Dora Gonzalez, Maria Lopez, Jose Rivera, Elizabeth Rivera, Rosa

Rivera, Jeanette Rivera, and Angelica individually and on behalf of all others

similarly situated filed a First Amended Complaint against Defendants alleging

causes of action for (1) Trespass; (2) Public Nuisance; and (3) Private

Nuisance.

On April 5, 2021, after hearing,

the Court sustained the demurrer of Defendant to the First Amended Complaint

with leave to amend.

On April 14, 2021, plaintiffs Dora

Gonzalez, Maria Lopez, Jose Rivera, Elizabeth Rivera, Rosa Rivera, Jeanette

Rivera, and Angelica Rivera filed the operative Second Amended Complaint

("SAC") against Defendant, Nick Joseph Estrada aka Nico Estrada Molina

("Estrada"), and DOES 2-100, alleging causes of action for (1) Trespass; (2)

Public Nuisance; and (3) Private Nuisance.

The operative Second Amended

Complaint ("SAC") alleges, inter alia, that defendant Estrada is unlawfully

residing at 1203 E. Cesar Chavez Ave., Los Angeles, CA 90033 (the "Offending

Property") in a fifth-wheel trailer without a permit. (SAC, ¶ 8.) Defendant is

the owner of the Offending Property and is knowingly allowing defendant Estrada

to unlawfully reside at the Offending Property. (SAC, ¶ 9.) Defendants are

alleged to have neglected the Offending Property "by . . . failing to clean up

trash and debris, which has been trespassing onto Plaintiffs' property on

Progress Place." (SAC, ¶ 10.)

On August 2, 2021, at the request

of Plaintiffs, defendant Estrada was dismissed from this action without

prejudice. (08/02/21 Request for Dismissal at p. 1.)

On November 3, 2021, after hearing,

the Court sustained the demurrer of Defendant to the first cause of action in

the SAC and overruled the demurrer of Defendant to the second and third causes

of action in the SAC. (See 11/03/21 Minute Order.)

On September 12, 2022, Defendant

filed an answer to the SAC. Also, on such date, non-jury trial in this action

commenced.

On November 29, 2022, after hearing

testimony and the presentation of evidence, the Court took the non-jury trial under submission.

On December 7, 2022, the Court

issued a tentative decision entering judgment against Defendant “and in favor of plaintiffs Jose Rivera, Rosa Rivera, Angelica Rivera and Elizabeth Rivera in the total amount of \$38,300.00.” (12/07/22 Minute Order at p. 1.)

On January 5, 2023, judgment was

entered in favor of plaintiffs Jose Rivera, Rosa Rivera, Angelica Rivera, and Elizabeth Rivera in the sum of \$38,300.00. (See 01/05/23 Judgment.)

On March 13, 2023, Rosa Herrera

filed an appeal of the Court’s judgment.

On April 4, 2023, an amended notice

of appeal was filed, which corrected the name of appellant Rosa Herrera to that of Defendant.

On April 24, 2023, Defendant filed

a second amended notice of appeal.

On September 15, 2023, remittitur

was issued and the March 13, 2023 appeal was dismissed. The remittitur

indicates, inter alia, that “Respondent to recover costs on appeal.”

(Remittitur Filed September 15, 2023 at p. 1.)

On May 27, 2026, Defendant filed

the instant motion to disqualify Chad Biggins as counsel for Plaintiffs.

On June 10, 2026, Plaintiffs filed

an opposition.

On June 17, 2026, Defendant

replied.

Analysis

Defendant

moves to disqualify Plaintiffs' counsel.

A.

Legal Standard

"A motion to disqualify a party's

counsel may implicate several important interests." (People ex rel. dept. of

Corporations v. Speedee Oil Change Systems, Inc. (1999) 20 Cal.4th 1135,

1144 ("Speedee").) "[J]udges must examine these motions carefully to

ensure that literalism does not deny the parties substantial justice." (Ibid.)

"Depending on the circumstances, a disqualification motion may involve such

considerations as a client's right to chosen counsel, an attorney's interest in

representing a client, the financial burden on a client to replace disqualified

counsel, and the possibility that tactical abuse underlies the disqualification

motion.” (Id. at p. 1145.) “A trial court’s authority to disqualify an attorney derives from the power inherent in every court [t]o control in furtherance of justice, the conduct of its ministerial officers, and of all other persons in any manner connected with a judicial proceeding before it, in every matter pertaining thereto.” (Ibid. [internal quotations omitted].)

“Ultimately, disqualification motions involve a conflict between the clients’ right to counsel of their choice and the need to maintain ethical standards of professional responsibility.” (Ibid.) “The important right to counsel of one’s choice must yield to ethical considerations that affect the fundamental principles of our judicial process.” (Ibid.)

“A lawyer shall not, without informed written consent[] from each affected client and compliance with paragraph (d), represent a client if there is a significant risk the lawyer’s representation of the client will be materially limited by the lawyer’s responsibilities to or relationships with another client, a former client or a third person,[] or by the lawyer’s own interests.” (Prof. Conduct, Rule 1.7(b) [italics added].)

As stated in Rule of Professional

Conduct, Rule 1.7(d):

“(d) Representation is permitted

under this rule only if the lawyer complies with paragraphs (a), (b), and (c),

and:

(1) the lawyer reasonably

believes[] that the lawyer will be able to provide competent and diligent

representation to each affected client;

(2) the representation is not

prohibited by law; and

(3) the representation does not

involve the assertion of a claim by one client against another client represented

by the lawyer in the same litigation or other proceeding before a tribunal."

(Prof. Conduct, Rule 1.7 (d).)

Rule of Professional Conduct, Rule

1.8.1 states as follows:

"A lawyer shall not enter into a

business transaction with a client, or knowingly[] acquire an ownership,

possessory, security or other pecuniary interest adverse to a client, unless

each of the following requirements has been satisfied:

(a) the transaction or acquisition

and its terms are fair and reasonable* to the client and the terms and the

lawyer's role in the transaction or acquisition are fully disclosed and

transmitted in writing* to the client in a manner that should reasonably* have

been understood by the client;

(b) the client is either

represented in the transaction or acquisition by an independent lawyer of the

client's choice or the client is advised in writing* to seek the advice of an

independent lawyer of the client's choice and is given a reasonable* opportunity

to seek that advice; and

(c) the client thereafter provides

informed written consent* to the terms of the transaction or acquisition and

the lawyer's role in it."

(Prof. Conduct, Rule 1.8.1.)

B.

Evidence in Support of the Motion

In support of the motion, Defendant

declares, inter alia, that since approximately 2025,

she has been engaged in settlement negotiations in an effort

to satisfy the judgment in this case. (Declaration of Eva Cepeida Filed May 27,

2026 ("Cepeida Decl."), ¶ 3.) Defendant declares that Mr. Biggins has increased

the calculations for the total outstanding balance. (Id.) "Biggins

refused to negotiate any fixed payment amounts or even a compromise for a full

payoff before ever speaking to the Plaintiffs. Biggins negotiated as though any settlement payment would go directly to him, not the named Plaintiffs.” (Id.)

Due to the difficulty negotiating with Mr. Biggins, Defendant “had a direct conversation with [p]laintiff Jose Rivera to discuss settlement of the judgment. During that conversation, Rivera directly told [Defendant] that the ‘attorney bought us out’ and he could not negotiate a settlement because the judgment ‘belongs to him’ and that Biggins ‘owns everything.’” (Id., ¶

4.) Defendant “understood Rivera to mean that Biggins had purchased the judgment from Rivera and the other Plaintiffs and that Plaintiffs no longer had any authority over the judgment or its enforcement.” (Id.) Defendant indicates that she “then asked Rivera how much Biggins had paid the Plaintiffs to acquire the judgment. Rivera did not answer. I then asked Rivera whether Biggins had paid Plaintiffs somewhere between \$15,000 and \$20,000 for the judgment. Rivera responded by nodding his head, which [Defendant] understood as an affirmative response to [her] question.” (Id., ¶ 5.)

Counsel for

Defendant, Jacob Mojarro (“Mojarro”), also provides a declaration in support of the motion. Counsel states, inter alia, that “[b]ased on my review of the filings, correspondence, and conduct of Biggins in this litigation, it is my belief that Biggins has purchased or been assigned the judgment from the

original Plaintiffs . . . and is now acting as the de facto judgment creditor.”

(Declaration of Jacob Mojarro Filed May 27, 2026 (“Mojarro Decl.”), ¶ 2.) Biggins

did not respond to the question of Mr. Mojarro during an April 2026 telephone

discussion as to the ownership of the judgment; rather, Mr. Biggins stated that

ownership of the judgment was not relevant. (Id., ¶ 3.) Mr. Biggins

became defensive and defiant when Attorney Mojarro informed Mr. Biggins about

the ethical implications of “his acquisition of a personal financial interest

in the outcome of this litigation” (Id., ¶ 4.)

In her

declaration in support of the reply, Defendant declares, inter alia, that

her attorney never coached or encouraged her to speak to plaintiff Jose Rivera.

(Declaration of Eva Cepeida Filed June 17, 2026 (“Cepeida Reply Decl.”), ¶ 4.) Plaintiff

Jose Rivera stated that Plaintiffs did not own the judgment and that Attorney Biggins

bought Plaintiffs out. (Id., ¶ 6.) When asked how much Mr. Biggins paid

for the judgment, plaintiff Jose Rivera indicated that he did not know because

his daughters “took care of it.” (Id., ¶ 7.) Defendant attests that “Mr.

Rivera made it perfectly clear that the Plaintiffs no longer own the judgment

and that Chad Biggins had bought them out.” (Id., ¶ 9.)

C.

Evidence in Support of the Opposition

In support of the opposition,

plaintiff Jose Rivera provides a declaration. Plaintiff Rivera

declares, inter alia, that the statements in the

declaration of Defendant in support of the motion are false concerning that

Plaintiffs were bought out by their counsel. (Declaration of Jose Rivera Filed

June 10, 2026 ("Rivera Decl."), ¶ 3.) Plaintiff Rivera states that he denies

"that [he] ever told Cepeida that Biggins purchased the judgment or paid any

amount to acquire it." (Id., ¶ 4.) Plaintiff Rivera states that he "said

words to the effect of 'talk to Chad.' I was not making any disclosure about

the financial arrangement between me and my attorney. I was telling Cepeida to

stop trying to talk to me about the case and call my lawyer. That is it." (Id.,

¶ 4.)

Attorney

Biggins states, inter alia, that during a telephone call in April 2026,

which was during active settlement negotiations, "Mojarro raised the

judgment-purchase theory as a specific accusation and explicitly threatened to

file a State Bar complaint against [Biggins] unless [he] agreed to settlement

terms favorable to his client." (Declaration of Chad Biggins Filed June 10,

2026 ("Biggins Decl."), ¶ 3.) Attorney Biggins "told Mojarro [his] fee

arrangement was confidential and not relevant to [their] negotiations." (Id.)

Counsel attests that it was Attorney Mojarro who was being difficult during settlement negotiations. (Id., ¶¶ 4-5; Exh. 2.)

D.

Disqualification is Not Currently Warranted

Initially, the Court finds that Plaintiffs'

reliance on *Great Lakes Construction, Inc. v.*

Burman (2010) 186 Cal.App.4th 1347 ("Great Lakes")

is proper. Great Lakes states the principle that "before the

disqualification of an attorney is proper, the complaining party must have or

must have had an attorney-client relationship with that attorney." (Great

Lakes, *supra*, 186 Cal.App.4th 1347, 1356.) Although Great Lakes arose

in the context of joint representation and did not involve the alleged purchase

of a client's right to a judgment, the Court finds that standing is required to

disqualify an attorney. (Great Lakes, *supra*, 186 Cal.App.4th

1347, 1350.)

Defendant relies

on *SpeedDee*, *supra*, 20 Cal.4th 1135 for the contention that the

Court has inherent authority to control the conduct of its officers. (Memo. of

Ps and As at p. 5:26-6:3.) However, as stated by the Great Lakes court, "a

highly speculative and tactical interest does not meet the standing

requirements.” (Great Lakes, *supra*, 186 Cal.App.4th 1347, 1359.) “[A]

moving party must have standing, that is, an invasion of a legally cognizable interest, to disqualify an attorney.” (Id. at p. 1357.)

Defendant’s

reliance on *Bauguess v. Paine* (1978) 22 Cal.3d 626 and *Limon v.*

Circle K. Stores Inc. (2022) 84 Cal.App.5th 671 are also inapposite.

Defendant has not presented a factually analogous case citation that addresses the present issue before this Court. “A case is not authority for a proposition not considered therein or an issue not presented by its own particular facts.”

(*McConnell v. Advantest America, Inc.* (2023) 92 Cal.App.5th 596, 611.)

The Court

finds that Plaintiffs’ reliance on Code Civ. Proc. § 368.5 is inapposite to support the proposition that, even if Attorney Biggins owned the judgment at issue, such Code of Civil Procedure section expressly provides for transfer of the interest. (Opp’n at pp. 9-10.) Code Civ. Proc. § 368.5 does not address the issue of purchase of a client’s interest in a judgment by their attorney.

Additionally,

Plaintiffs’ citation to *Fletcher v. Davis* (2004) 33 Cal.4th 61 (“Fletcher”)

is inapposite as such case did not address disqualification. Rather, Fletcher addressed whether an attorney must obtain a client’s consent in writing

when attempting to secure payment of fees and costs by obtaining a charging

lien against a client's future recovery. (Fletcher, *supra*, 33

Cal.4th 61, 64.)

Relevantly,

the Court finds that Defendant is relying on speculation to warrant

disqualification of Attorney Biggins. The Court references its recitation of

the parties' evidence from above and incorporates such recitation herein. There

is a conflict in the evidence as to whether Attorney Biggins purchased the

rights to the judgment from his clients. The declarations of Defendant and the

declaration of her counsel are rooted in speculation as plaintiff Jose Rivera

indicates that the statements of Defendant are false. (Rivera Decl., ¶¶ 3-4.) Thus,

Defendant has not shown standing.

Critically, Defendant is not a

client of Mr. Biggins. Further, Defendant has not presented any admissible

evidence that Mr. Biggins violated Rule of Professional Conduct, Rules 1.7 or

1.8.1. Mr. Biggins alludes to the instant motion being a retaliatory tactic for

not agreeing to Mr. Mojarro's settlement terms. (Biggins Decl., ¶ 3.) Further,

none of the exhibits attached to either the opposition declaration of Mr.

Biggins or the reply brief indicate that Mr. Biggins purchased the judgment

from Plaintiffs.

Conclusion:

The Court DENIES Defendant's motion to disqualify

Plaintiffs' counsel.

MOTION FOR ASSIGNMENT ORDER FOR RENTS PURSUANT TO CCP § 708.510 AND

RESTRAINING ORDER PURSUANT TO CCP § 708.520; REQUEST FOR ACCOUNTING OF RENTS

COLLECTED

Relief Requested:

The Court enter

an assignment order pursuant to CCP § 708.510 requiring Defendant to assign to

Plaintiffs all rental income, rents, and other payments due or to become due

from any tenant or occupant of the real property located at 1203 E. Cesar

Chavez Avenue, Los Angeles, CA 90033 (APM 5714-011-028) (the "Property"), in an

amount sufficient to satisfy the outstanding money judgment, until the judgment

is paid in full; a restraining order pursuant to CCP § 708.520 prohibiting

Defendant from assigning, transferring, dissipating, encumbering, or otherwise

disposing of any rental income or right to payment from the Property pending

further order of the Court; and an order requiring Defendant to provide a full

accounting of all rents and other payments received from any tenant or occupant

of the Property from the date of the judgment through the present, including

the identity of all tenants, the amounts paid, and the dates received.

Analysis

A.

Evidentiary Objections

Plaintiffs object to the

declarations of Defendant Eva Cepeida and Attorney Jacob

Mojarro submitted in support of the opposition. The

evidentiary objections are not numbered. Moreover, Plaintiffs have only cited

to the paragraphs sought to be stricken in the declarations and have not cited

to the relevant page and line numbers.

The Court

OVERRULES Plaintiffs' evidentiary objections to paragraph 3 of the declaration

of defendant Eva Cepeida.

The Court

SUSTAINS Plaintiffs' evidentiary objections to paragraph 4 of defendant Eva Cepeida's

declaration on the grounds of inadmissible compromise negotiation evidence

(Evid. Code § 1152); paragraph 5 on the grounds of hearsay (Evid. Code § 1200);

paragraph 8 on the grounds of speculation (Evid. Code §§ 702, 800); and

paragraph 9 on the grounds of relevance (Evid. Code § 350).

As to the

declaration of Attorney Jacob Mojarro, the Court SUSTAINS Plaintiffs'

evidentiary objections to paragraph 2 therein on the grounds of speculation

(Evid. Code §§ 702, 800) and relevance (Evid. Code § 350); paragraphs 3 and 4

on the grounds of inadmissible compromise negotiation evidence (Evid. Code §

1152); paragraph 5 on the grounds of hearsay (Evid. Code § 1200); and paragraph

7 on the grounds of relevance (Evid. Code § 350).

B.

Legal Standard

“Except as otherwise provided by

law, upon application of the judgment creditor on noticed motion, the court may

order the judgment debtor to assign to the judgment creditor or to a receiver .

. . all of part of a right to payment due or to become due, whether or not the

right is conditioned on future developments, including but not limited to . . .

(2) Rents.” (Code Civ. Proc., § 708.510, subd. (a)(2).) “The notice of the

motion shall be served on the judgment debtor. Service shall be made personally

or by mail.” (Code Civ. Proc., § 708.510, subd. (b).)

Code Civ. Proc. § 708.510(c) states

as follows:

“(c) Subject to subdivisions (d),

(e), and (f), in determining whether to order an assignment or the amount of an

assignment pursuant to subdivision (a), the court may take into consideration

all relevant factors, including the following:

(1) The reasonable requirements of

a judgment debtor who is a natural person and of persons supported in whole or in part by the judgment debtor.

(2) Payments the judgment debtor is

required to make or that are deducted in satisfaction of other judgments and wage assignments, including earnings assignment orders for support.

(3) The amount remaining due on the

money judgment.

(4) The amount being or to be

received in satisfaction of the right to payment that may be assigned.”

(Code Civ. Proc., § 708.510, subd.

(c)(1)-(4).)

“A right to payment may be assigned

pursuant to this article only to the extent necessary

to satisfy the money judgment.” (Code Civ. Proc., § 708.510,

subd. (d).)

“When an

application is made pursuant to Section 708.510 or thereafter the judgment

creditor may apply to the court for an order restraining the judgment debtor

from assigning or otherwise disposing of the right to payment that is sought to be assigned. The application shall be made on noticed motion if the court so directs or a court rule so requires. Otherwise, it may be made ex parte.” (Code Civ. Proc., § 708.520, subd. (a).) “The court may issue an order pursuant to this section upon a showing of need for the order. The court, in its discretion, may require the judgment creditor to provide an undertaking.” (Code Civ. Proc., § 708.520, subd. (b).) “The court may modify or vacate the order at any time with or without a hearing on such terms as are just.” (Code Civ. Proc., § 708.520, subd. (c).) “The order shall be personally served upon the judgment debtor and shall contain a notice to the judgment debtor that failure to comply with the order may subject the judgment debtor to being held in contempt of court.” (Code Civ. Proc., § 708.520, subd. (d).)

“[A]n

assignee of a right to payment pursuant to this article shall be deemed to be a bona fide assignee for value under terms of Section 955.1 of the Civil Code.”

(Code Civ. Proc., § 708.530, subd. (a).) “The rights of an obligor are not affected by an order assigning the right to payment until notice of the order is received by the obligor.” (Code Civ. Proc. § 708.540.) An “obligor means the person who is obligated to make payments to the judgement debtor or who may become obligated to make payments to the judgment debtor depending upon future

developments.” (Id.)

C.

Evidence in Support of the Motion

In support of the motion, Chad

Biggins (“Biggins”) provides a declaration. Attorney

Biggins declares, inter alia, that Plaintiffs hold a

money judgment against Defendant entered in this action on or about January 5,

2023. (Biggins Decl., ¶ 2.) Post-judgment interest continues to accrue, and additional

costs have been incurred in connection with enforcement. (Id.) The

judgment remains unsatisfied. (Id., ¶ 3.) Defendant has not made any

voluntary payments and has not complied with the Court’s October 28, 2025 order

compelling post-judgment discovery responses and imposing sanctions in the sum

of \$660.00. (Id.)

The Property is a commercial

property and “[t]his is the same property that is the subject of the

post-judgment discovery requests and the concurrent motion for sanctions.” (Id.,

¶ 4.) Counsel attests that he has learned from multiple sources that a tenant

is currently occupying the Property and paying rent to Defendant. (Id.,

¶ 5.) However, counsel does not know the precise amount of rent being

collected. (Id., ¶ 6.) Counsel indicates that the outstanding judgment

balance is estimated to be over \$60,000.00 in total, and the “rental income from the Property should be assigned to Plaintiff until the judgment is fully satisfied.” (Id., ¶ 7.)

D.

Evidence in Support of the Opposition

In opposition to the Motion,

Defendant declares, inter alia, that the Property generates

rental income, which she uses to pay the mortgage and

deed-of-trust obligations on the property, property taxes, insurance premiums,

and necessary maintenance and repair costs. (Declaration of Eva Cepeida Filed May

22, 2026 (“Cepeida Decl.”), ¶ 3.) If the rental income is assigned to

Plaintiffs, Defendant “would be unable to meet these obligations and would face

the risk of default, foreclosure, and loss of the property.” (Id.) All

outstanding discovery responses have been provided. (Id., ¶ 5.) As to

the two deeds of trust that Attorney Biggins has sought to void by way of issue

sanctions, the recorded documents are held by the entities that handled the

relevant transactions. (Id., ¶ 6.) Defendant declares that she has not

refused to satisfy the judgment. (Id., ¶ 7.) Rather, “there are ongoing

disputes about the correct amount of the judgment balance, including disputes

about post-judgment costs and fees claimed by Biggins.” (Id., ¶ 7.)

In her

supplemental declaration, Defendant states that the rents she has collected from the Property have been her only source of income for over ten years apart from a “portion of [her] ex-husband’s pension at approximately \$2000 a month and [her] social security check at \$803 per month.” (Supplemental Declaration of Eva Cepeida Filed June 12, 2026 (“Cepeida Suppl. Decl.”), ¶ 3.) As for her residential property, Defendant pays \$1,400.00 per month for a mortgage contribution; spends approximately \$375.00 on utilities and phone service; and spends around \$1,000.00 per month combined for food and personal expenses. (Id.)

Currently, the Property is vacant and there is no tenant. (Id., ¶¶ 4-6;

Exhs. 1-2.) The current fair market rental value for the Property is \$3,500.00.

(Id., ¶ 4.) Defendant states that if the entire rental income from the

Property is diverted to the judgment creditor, she “would face personal

hardship, the risk of default and/or forfeiture of [her] real property

interest.” (Id., ¶ 8.) Defendant states that she has provided responses

to all outstanding discovery. (Id., ¶ 12.) Defendant states that she is

“still willing and able to make payments on the judgment in the amount of \$500

a month with an increase [to] \$1000 a month upon the . . . Property being

rented.” (Id., ¶ 14.)

Attorney

Mojarro states that on or about April 27, 2026, a check was issued to Attorney Biggins in the sum of \$600.00 in satisfaction of the prior sanctions order entered in this case. (Mojarro Decl., ¶ 6.)

E.

The Requested Relief is Unwarranted at This Time

Initially, as to the issue of

standing, the Court finds that such issue has been separately

addressed in connection with the motion to disqualify. The

issue of standing is not relevant to this Court's assessment of whether an

assignment order should be entered. Moreover, Defendant has not presented

sufficient admissible evidence that Attorney Biggins in fact owns the judgment

at issue.

The Court references

its recitation of the parties' respective evidence from above and incorporates

such recitation herein. The Court recognizes that the judgment is not

satisfied, which is a fact that Defendant does not dispute. However, the entire

premise of the Motion—that Defendant is currently receiving rent—has been disproven

via the supplemental declaration of Defendant. Moreover, Attorney Biggins has

attested to not knowing the precise rent amount collected. (Biggins Decl., ¶

6.) The Court cannot order an assignment of rents at an accurate amount to

satisfy the judgment if the moving party cannot ascertain the amount of rent currently being received. Relevantly, based on CCP § 708.510(c), the Court finds that an assignment order and the related relief requested via the Motion are not currently warranted. Defendant states that she would face personal hardship and have the “risk of default, or foreclosure and/or forfeiture of [her] real property interest” if the assignment order is instituted. (Cepeida Suppl. Decl., ¶ 8.) Also, Defendant is not attempting to avoid payment of the judgment. (Id., ¶ 13.)

Conclusion:

The Court DENIES Plaintiffs’ motion for assignment order, restraining order, and request for accounting of rents collected.